

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUPA048630: JOSE ALONZO SALAZAR vs JOSE SANTIVANEZ, et al.

08/20/2026 in Department 21

Motion to Compel THE DEPOSITION OF PLAINTIFF JOSE ALONZO SALAZAR

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendants, Jose Santivanez and Eliodoro Salazar-Guzman’s (“Defendants”) Motion to Compel the Deposition of Plaintiff Jose Alonzo Salazar (“Salazar” or “Plaintiff”).

Tentative Ruling: Defendants’ motion to compel Plaintiff Salazar to appear for deposition is GRANTED. Salazar is ordered to appear for deposition within 30 days.

Counsel for Defendants is to give notice within two (2) court days.

Discussion:

I. Meet & Confer Declaration or Inquiry About Non-Appearance

The motion must “be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (CCP, § 2025.450, subd. (b)(2).)

The motion is accompanied by a sufficient declaration.

II. Compel Appearance of Deponent

Since Salazar failed to appear for a properly noticed deposition, the question is whether he has justified any objections. (See CCP, § 2025.450, subd. (a); see also *Fairmont Ins. Co. v. Super. Ct.* (2000) 22 Cal.4th 245, 255.)

There is no attempt to justify any objections. Plaintiff has not filed any opposition to this motion. According to defense counsel, as well as the attached correspondence and Declaration from Plaintiff counsel, the only basis for the opposition is that plaintiff counsel cannot locate Salazar. That is not a basis to deny discovery. Plaintiff counsel's power of attorney does not remedy this issue. Defendants have the right to obtain this discovery and to file this motion to move the case forward. An order compelling Salazar's deposition is warranted.

The motion to compel the deposition is GRANTED.